

24TRCV02086 24TRCV02086

County: los-angeles

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Case Number: 24TRCV02086 Hearing Date: July 2, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

KAMRAN HARSINI

;

Plaintiff,

vs.

THE HILL COMMUNITY
ASSOCIATION

, et al.;

Defendants.

Case

No.:

24TRCV02086

Hearing

Date:

March
18, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

PLAINTIFF

KAMRAN HARSINI'S MOTION FOR ORDER OF CONTEMPT AGAINST DEFENDANT THE HILL
ASSOCIATION

(2)

PLAINTIFF

KAMRAN HARSINI'S REQUEST TO IMPOSE A \$1,000 FINE

(3)

PLAINTIFF

KAMRAN HARSINI'S REQUEST FOR ATTORNEY'S FEES

MOVING PARTY: Plaintiff, Kamran Harsini

RESPONDING

PARTY: Defendant, the Hill Community
Association

(1)

Plaintiff

Kamran Harsini's Motion for Order of Contempt Against Defendant the Hill
Community Association is GRANTED pursuant to Code of Civil Procedure sections 1209,
subdivision (a)(5).

(2)

Plaintiff

Kamran Harsini's Request to Impose a \$1,000 Fine is DENIED pursuant to Code of

Civil Procedure section 1218, subdivision (a).

(3)

Plaintiff

Kamran Harsini's Request for Attorney's Fees is GRANTED pursuant to Code of Civil Procedure section 1218, subdivision (a).

The Court considers the moving papers filed on January 29, 2026, the amended declaration filed on March 19, 2026, the opposition brief filed on April 22, 2026, and the reply brief filed on April 27, 2026.

BACKGROUND

Factual

Background

On June 21, 2024, plaintiff Kamran Harsini, trustee of the Masoumeh Ziaee Harsini Trust Dated April 27, 2004 ("Plaintiff") filed a Complaint against defendants the Hill Community Association, Classic Property Management, Inc. ("Hill"), Steve Waltzman, Michael Hagerthy, Hitochi Morimoto, Cyndi Puerto, and DOES 1 through 100. On October 16, 2024, Plaintiff filed a First Amended Complaint ("FAC"). On December 20, 2024, Plaintiff filed a Second Amended Complaint ("SAC"). The SAC alleges the following causes of action: (1) Breach of Contract; (2) Breach of Fiduciary Duty; (3) Gross Negligence and Willful Misconduct; (4) Nuisance; (5) Infringement of Rights of Others; (6) Fraud; (7) Failure to Respond to Written Request for Records; (8) Failure to Maintain Common Areas; (9) Trespass; (10) Conspiracy; (11) Injunctive Relief; and (12) Attorneys' Fees and Costs.

On October 10, 2025, Plaintiff filed the Motion to Compel Further Discovery Responses to Requests for Documents, Set One. (Declaration of Christopher J. Weber ("Weber Decl."), ¶ 11.) The accompanying proof of service indicates that the motion was mailed to Hill's counsel, Sydney Preston at Freeman Mathis & Gary, LLP, located at 550 South Hope Street, Suite 2200, Los Angeles, CA 90071-2631, on October 6 and 9, 2025. (MTCF PoS, pp. 12-13.)

On December 1, 2025, the Court granted Plaintiff's Motion to Compel Further Discovery Responses to Requests for Documents, Set One. (December 1, 2025 Minute Order, p. 6.) The Court ordered Hill to provide Plaintiff with verified responses that comply with the code by January 15, 2026. (December 1, 2025 Minute Order, p. 6; Amended

Declaration of Virginia Marsh ("Amend. Marsh Decl."), ¶ 3.) Additionally, the Court ordered Hill to pay a monetary sanction of \$900.00 by the same date, January 15, 2026. (December 1, 2025 Minute Order, p. 6; Amend. Marsh Decl., ¶ 3.)

On December 2, 2025, Plaintiff filed the Notice of Ruling on Plaintiff's Motion to Compel Further Discovery Responses to Request for Documents, Set One. (Notice, p. 1; Amend. Marsh Decl., ¶ 4.) The accompanying proof of service indicates that the notice was mailed to Hill's counsel, Sydney Preston at Freeman Mathis & Gary, LLP, at the same address noted above, on December 3, 2025. (MTCF PoS, p. 3.) Hill's counsel confirms receipt of the notice. (Weber Decl., ¶ 13; Amend. Marsh Decl., ¶ 5.)

On February 26, 2026, Hill filed the Ex Parte Application for Order to Set Aside for Order Granting Plaintiff's Motion to Compel Further Responses to Written Discovery and Award of Sanctions. The Court denied this ex parte application on February 27, 2026, determining that the appropriate remedy is to file a noticed motion. (February 27, 2026 Minute Order, p. 1.)

On May 21, 2026, the Court held a hearing on Hill's Motion to Vacate and Set Aside Order Granting Plaintiff Kamran Harsini's Motion to Compel Further Discovery Responses and Award of Sanctions. (May 21, 2026 Minute Order, pp. 4-5.) The Court found that "the motion was indeed served upon Hill" and noted that "it is highly improbable that Hill and its attorney did not receive [the] two motions delivered" to Sydney Preston at Freeman Mathis & Gary, LLP, located at 550 South Hope Street, Suite 2200, Los Angeles, CA 90071-2631. (May 21, 2026 Minute Order, pp. 3-4.)

Procedural Background

On January 29, 2026, Plaintiff filed this Motion for Order for Contempt Against Defendant the Hill Community Association. On March 13, 2026, Defendant filed an opposition brief. On March 16, 2026, Plaintiff filed a reply brief. However, the Court elected not to consider the opposition brief due to its untimeliness.

A hearing was held on March 18, 2026, during which the Court decided not to adopt its tentative ruling. (March 18, 2026 Minute Order, p. 6.) The Court

continued the hearing, permitting Plaintiff to file an amended affidavit

consistent with their counsel's oral argument by April 8, 2026. (March 18, 2026 Minute Order, p. 6.) Hill was granted until April 22, 2026, to

submit an opposition to the amended affidavit, while Plaintiff was required to provide a reply by May 6, 2026. (March 18, 2026 Minute Order, p. 6.)

On March 19, 2026, Plaintiff's counsel filed an amended declaration. On April 22, 2026, Hill filed an opposition brief. On April 27, 2026, Plaintiff filed a reply brief.

LEGAL

STANDARDS

Contempt is any act, in or out of court, "which tends to impede, embarrass or obstruct the court in the discharge of its duties." (In re Shortridge (1893) 99 Cal. 526, 532.)

Particular acts constituting contempt are enumerated by statute, including: "(d)isobedience of any lawful ... order, or process of the court"; "(d)isobedience of a subpoena duly served"; "refusing to ... answer as a witness"; "(d)isorderly, contemptuous, or insolent behavior toward the judge while holding the court, tending to interrupt the due course of ... trial." (Code Civ. Proc., § 1209, subd.

(a); see Code Civ. Proc., § 1991 [disobedience of subpoena]; see also Pen. Code, § 166 [misdemeanor].) In addition, courts have inherent power to punish acts that interfere with the orderly conduct of proceedings. (Code Civ. Proc., § 128, subd. (a)(3); In re Buckley (1973) 10 Cal.3d 237, 247.) Any person who commits a contemptuous act may be punished for contempt, which includes attorneys and parties. (Hallinan v. Superior Court in and for Kings County (1925) 74 Cal.App. 420, 426 [persisting in arguing objections after repeated warnings by the judge]; Hanson v. Superior Court (2001) 91 Cal.App.4th 75, 84-85 [attorney misconduct during closing argument]; In re Coleman (1974) 12 Cal.3d 568, 573 [labor union violated temporary restraining order].)

When the contempt at issue is

"indirect," a more elaborate procedure is followed to notify the person(s)

sought to be charged and allow them an opportunity to be heard. (Code Civ. Proc., §§ 1211–1218; see also *Hanson v. Superior Court*, supra, 91 Cal.App.4th at p. 81.) “An affidavit must be presented to the court stating the facts constituting the contempt, an order to show cause must be issued, and hearing on the facts must be held by the judge.” (*Arthur v. Superior Court of Los Angeles County* (1965) 62 Cal.2d 404, 407-408.) Since the acts involved did not occur in the court’s presence, the affidavit must cover each element of the commission of the contempt. (Code Civ. Proc., § 1211.5.) This affidavit serves as the “complaint” in an indirect contempt proceeding and must contain factual allegations based on firsthand knowledge. (*Lyon v. Superior Court of Los Angeles County* (1968) 68 Cal.2d 446, 452 (*Lyon*).)

In indirect contempt proceedings based on disobedience of a prior court order, a valid judgment must meet “strict requirements.” Each of the following must be established: (1) the rendition of a valid court order; (2) actual knowledge of the order; (3) ability to comply; and (4) willful disobedience of the order. (*Conn v. Superior Court* (1987) 196 Cal.App.3d 774, 784 [repeated failures to turn over documents as ordered].) Upon receipt of the affidavit, the court usually issues an order to show cause (“OSC”) why the person should not be held in contempt. (Code Civ. Proc., § 1212.)

Although not required, the alleged contemnor may respond to the affidavit and OSC by counter-affidavits.

These affidavits serve as the “answer” to the charging allegations in the original affidavit. (*Lyon*, supra, 68 Cal.2d at p. 452.) However, such affidavits are not mandatory. The alleged contemnor may assert their defenses entirely at the hearing. (Code Civ. Proc., § 1217.)

“Upon the answer and evidence taken, the court or judge shall determine whether the person proceeded against is guilty of the contempt charged, and if it be adjudged that the person is guilty of the contempt, a fine may be imposed on the person not exceeding one thousand dollars (\$1,000), payable to the court, or the person may be imprisoned not exceeding five days, or both. In addition, a person who is subject to a court order as a party to the action, or any agent of this person, who is adjudged guilty of contempt for violating that court order may be ordered to

pay to the party initiating the contempt proceeding the reasonable attorney's fees and costs incurred by this party in connection with the contempt proceeding." (Code Civ. Proc., § 1218, subd. (a).)

DISCUSSION

Plaintiff requests an order of contempt against Hill due to Hill's noncompliance with the Court's order issued on December 1, 2025; this order mandated the provision of responses and the payment of \$900.00 in sanctions. (Motion, p. 2:4-7; Amend. Marsh Decl., ¶ 3.) Furthermore, Plaintiff seeks to impose a fine of \$1,000 on Hill, payable to the Court, as well as \$600.00 in attorney's fees to be paid to Plaintiff's counsel. (Motion, pp. 4:20-5:2.)

As articulated in the legal standards section, Plaintiff is required to establish the following four elements: (1) the rendition of a valid court order; (2) actual knowledge of the order; (3) ability to comply; and (4) willful disobedience of the order. (Conn v. Superior Court (1987) 196 Cal.App.3d 774, 784 [repeated failures to turn over documents as ordered] (Conn).) Furthermore, because the alleged noncompliance with the Court's order did not occur in the Court's presence, an affidavit must address each element of the contempt charge. (Code Civ. Proc., § 1211.5; Arthur v. Superior Court of Los Angeles County (1965) 62 Cal.2d 404, 407-408.) The amended declaration provided by Virginia Marsh addresses all the necessary elements.

Here, Marsh affirms that a valid court order was issued. She states, "The court issued an order on 12/1/25 compelling [Hill] to produce discovery responses and to pay sanctions, both to be completed not later than 1/15/26." (Amend. Marsh Decl., ¶ 3.) Although Hill contested the validity of the order on the grounds of alleged non-receipt of the motion, the Court upheld its ruling and denied Hill's Motion to Vacate and Set Aside Order Granting Plaintiff Kamran Harsini's Motion to Compel Further Discovery Responses and Award of Sanctions. (May 21, 2026 Minute Order, pp. 4-5.)

Further, Marsh confirms that Hill was notified and possessed knowledge of the order. She asserts, "I filed and served Notice of the Ruling on 12/2/25, which is reflected in the court's

website, and by a proof of service filed with that Notice.” (Amend. Marsh Decl., ¶ 4.) Additionally, Hill’s counsel submitted a declaration indicating that “ ‘[D]efense counsel first became aware of the existence of Plaintiff’s Motion to Compel through Plaintiff’s Notice of Ruling dated December 2, 2025.’ ” (Amend. Marsh Decl., ¶ 5.)

Third, Marsh provides evidence of Hill’s ability to comply: “I have not received any information or statement from any source that would indicate that Defendant HILL, either directly or through counsel, was unable to comply with the court’s order compelling production of discovery and sanctions.” (Amend. Marsh Decl., ¶ 5.) While Hill asserts that this evidence fails to meet the criteria established in Conn, the Court disagrees. (Opp., pp. 4:21-5:1.) Hill has not provided any case law or statutory authority to substantiate this claim. Furthermore, neither Hill nor its counsel contends that Hill lacked the capability to provide the required discovery or pay the sanctions.

Finally, Marsh presents evidence that Hill has willfully disobeyed the Court order. She states, “To date, Plaintiff has not received discovery responses per the court’s order of 12/1/25, and has not received payment of sanctions.” (Amend. Marsh Decl., ¶ 7.) While Hill contested the order’s validity based on claims of non-service of the original motion, the Court found that Hill received the original motion and upheld the order’s validity. (May 21, 2026 Minute Order, pp. 4-5.) Therefore, the Court finds Hill’s assertion that its “noncompliance stems from a lack of notice and a pending challenge to the validity of the underlying order—not from willful disobedience or malicious intent to deny Plaintiff his right to discovery” to be unconvincing. (Opp., p. 2:17-19.) As such, the Court finds credible evidence of willful noncompliance.

Accordingly, the Court GRANTS Plaintiff’s motion.

Request for Fines and Attorney’s Fees

Plaintiff requests that the Court impose a fine of \$1,000 on Hill, payable to the Court, as well as \$600.00 in attorney’s fees to be paid to Plaintiff’s counsel. (Motion, pp. 4:20-5:2.) Plaintiff makes this request pursuant to Code of Civil Procedure section 1218, subdivision (a). (Motion, p. 4:21-23.) Marsh’s declaration supports Plaintiff’s claim for attorney’s fees. In her

declaration, she states that she spent 2.0 hours on the motion at a rate of \$300.00 per hour. (Amend. Marsh Decl., ¶ 12.) Here, Plaintiff's request for attorney's fees in the amount of \$600.00 is reasonable. However, imposition of \$1,000.00 in addition to attorney's fees is unnecessary.

ORDERS

1) Plaintiff

Kamran Harsini's Motion for Order of Contempt Against Defendant the Hill Community Association is GRANTED.

2) Plaintiff

Kamran Harsini's Request to Impose a \$1,000 Fine is DENIED.

3) Plaintiff

Kamran Harsini's Request for Attorney's Fees is GRANTED.

4) Hill

is ordered to pay Plaintiff's counsel \$600.00 by July 16, 2026.

5) Plaintiff

is ordered to give notice of this Court's ruling.

IT IS SO ORDERED.

DATED: July 2, 2026

Tamara
Hall

Judge
of the Superior Court